

PART II
ORDERS IN COUNCIL REVOKED

2ND SCH.
—cont.

Year and Number	Short Title	Extent of Revocation
S.R. & O. 1920, No. 2410.	The Central Midwives Board (Constitution) Order, 1920.	The whole Order.
S.R. & O. 1921, No. 765.	The Central Midwives Board (Term of Office) Order, 1921.	The whole Order.
S.I. 1948, No. 2.	The Statutory Instruments (Confirmatory Powers) Order, 1947.	In the Schedule, the entries relating to the Midwives Act, 1902.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Midwives Act, 1902	2 Edw. 7. c. 17.
Midwives (Ireland) Act, 1918	7 & 8 Geo. 5. c. 59.
Nurses Registration Act, 1919	9 & 10 Geo. 5. c. 94.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Midwives Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 40.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
Arbitration Act, 1950	14 Geo. 6. c. 27.
Midwives (Scotland) Act, 1951	14 & 15 Geo. 6. c. 54.

CHAPTER 54

Midwives (Scotland) Act, 1951

ARRANGEMENT OF SECTIONS

The Central Midwives Board for Scotland

Section

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2. Certification of Midwives.
3. The roll of certified midwives.
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5. Power of the Board to make rules as to certification of midwives, etc.

Section

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SCHEDULES:

- First Schedule—Constitution and Procedure of the Central Midwives Board for Scotland.
Second Schedule—Repeals.
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An Act to consolidate certain enactments relating to
midwives in Scotland. [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows:—

The Central Midwives Board for Scotland

1.—(1) There shall be a Board, to be called the Central Midwives Board for Scotland (in this Act referred to as “the Board”), and the Board shall have such duties and powers as are conferred on them by the provisions of this Act.

Constitution
and functions
of the Central
Midwives
Board for
Scotland.

(2) Subject to the provisions of any order made under the next following subsection, the provisions of the First Schedule to this Act shall have effect with respect to the constitution and procedure of the Board.

(3) If at any time it appears to the Secretary of State, after consultation with such bodies and persons as appear to him to be concerned, to be expedient so to do, he may by order vary the constitution of the Board or reconstitute the Board.

The power conferred on the Secretary of State by this subsection shall be exercisable by statutory instrument whereof a draft shall be laid before Parliament.

(4) An order made under the last foregoing subsection may provide for any incidental or supplementary matters for which it appears to the Secretary of State to be requisite or expedient for the purposes of the order to provide, and in particular, but without prejudice to the generality of this subsection, may (so far as provision in that behalf appears to the Secretary of State to be requisite or expedient for the purpose of giving full effect to the order) empower the Board to make rules with respect to such matters as may be specified in the order.

Provisions relating to the Certification of Midwives, the Roll of Certified Midwives and the Discipline of Midwives

2. It shall be the duty of the Board to issue, in pursuance of Certification rules in that behalf made under the following provisions of this Act, certificates to women who comply with the rules.

3.—(1) It shall be the duty of the Board to keep a roll of certified midwives (hereinafter in this Act referred to as “the roll”).

The roll of
certified
midwives.

(2) The secretary of the Board, acting under the instructions of the Board, shall be charged with the preparation, correction and custody of the roll.

(3) A copy of the roll shall be kept at the office of the Board and shall be open to the inspection of any person without charge during usual business hours.

(4) Each entry in the roll shall include, with respect to the woman to whom the entry relates, an indication of the manner in which she became entitled to be certified under this Act or the Midwives (Scotland) Act, 1915.

(5) A copy of the roll printed by the authority of the Board or signed by the secretary of the Board, or other person authorised by the Board to sign on his behalf, shall be evidence that the women therein specified are certified midwives, and the absence of the name of a woman from such copy shall be evidence that that woman is not a certified midwife.

(6) A certificate under the hand of the secretary of the Board or other person authorised as aforesaid that the name of a woman whose name does not appear in such a copy as aforesaid is included in the roll shall be evidence that that woman is a certified midwife; and a certificate under the hand of the secretary of the Board or other person authorised as aforesaid that the name of a woman whose name appears in the roll has been removed therefrom, and of the date of the removal, shall be evidence of the fact that that woman is not a certified midwife and of the date as from which she ceased to be certified under this Act or the Midwives (Scotland) Act, 1915.

(7) If any person wilfully makes or causes to be made any falsification in any matter relating to the roll, he shall be guilty of an offence, and shall be liable, on conviction thereof, to imprisonment for a term not exceeding twelve months.

**Removal of
midwives from
the roll.**

4.—(1) The Board may remove from the roll the name of a certified midwife who disobeys any of the rules made under or by virtue of this Act by the Board or who otherwise misconducts herself, and where they do so they may cancel her certificate.

(2) The Board may from time to time by registered letter, addressed to any woman whose name is included in the roll at her address as appearing therein, inquire of her whether she has ceased practice or has changed her residence; and if within a period of six months from the sending of the letter no answer is received thereto the Board may remove her name from the roll, and cancel her certificate.

(3) Where the Board remove the name of a woman from the roll they shall forthwith give notice of that fact to all local supervising authorities concerned.

(4) Where the Board remove the name of a woman from the roll they may, in addition, prohibit her from attending women in childbirth in any capacity other than that of midwife.

(5) A woman who thinks herself aggrieved by any decision of the Board to remove her name from the roll or to prohibit her from attending women in childbirth may within three months after the notification to her of the decision appeal therefrom to the Court of Session, and the order of the Court of Session on an appeal under this subsection shall be final.

(6) A woman whose name is ordered to be removed from the roll under subsection (1) of this section shall within fourteen days from the notification to her of the order, surrender to the Board her certificate and any badge issued to her in pursuance of rules made under the following provisions of this Act by the Board, and, if she fails so to do, she shall be liable on summary conviction to a fine not exceeding five pounds.

(7) The Board may restore to the roll the name of a woman removed therefrom, other than the name of a woman removed therefrom under section four of the Maternity Services (Scotland) Act, 1937, and where they do so they may re-issue the woman's certificate.

(8) A woman who acts in contravention of a prohibition imposed under subsection (4) of this section shall be liable on summary conviction to a fine not exceeding ten pounds.

(9) The Board may make rules providing, in relation to proceedings before the Board for the removal of the name of a woman from the roll, for the summoning, attendance and examination of witnesses, the production of documents, the administration of oaths and the taking of affirmations.

5.—(1) The Board shall have power to make rules—

- (a) regulating the issue by them of certificates and the conditions of admission to the roll, and prescribing courses of training to be undergone and the examinations to be passed by women as a condition of the issue of certificates to them ;
- (b) regulating, supervising and restricting within due limits the practice of certified midwives ;
- (c) defining the emergencies in which a certified midwife shall call in a duly qualified medical practitioner to her assistance ;
- (d) prescribing the conditions under which certified midwives may be suspended from practice and in particular, but without prejudice to the generality of this paragraph, authorising the Board to suspend a certified midwife from practice in lieu of removing her name from the roll, and to suspend from practice until the case has been decided and (in the case of an appeal) until the appeal has been decided, a certified midwife accused before the Board of disobeying rules or of other misconduct ;

Power of the Board to make rules as to certification of midwives, &c..

- (e) requiring certified midwives to attend from time to time, in accordance with the provisions of the rules, a course of instruction approved by the Board ;
- (f) regulating the granting by the Board of diplomas, being diplomas in the teaching of midwifery, to certified midwives presenting themselves for examination for such diplomas ; and
- (g) making provision with respect to the uniform which may be worn by certified midwives and as to the wearing of badges by them.

(2) Examinations prescribed by rules made under paragraph (a) of the foregoing subsection shall, so far as possible, be of a practical character, and shall be held at such times and places as the Board may determine ; and the Board may appoint examiners, of whom one shall be a woman who is a duly qualified medical practitioner and none shall be a member of the Board, for the purposes of such examinations, and may make rules regulating the conduct of such examinations and the remuneration of examiners appointed for the purposes thereof.

(3) There shall be payable to the Board by a woman in respect of any examination for which she presents herself and in respect of the issue to her of a certificate such fees respectively as may be determined by the Board with the approval of the Secretary of State.

Certification
of midwives
certified in
England or
Northern
Ireland.

6.—(1) It shall be the duty of the Board in exercise of the power conferred on them by paragraph (a) of subsection (1) of the last foregoing section—

- (a) after consultation with the Central Midwives Board, to make rules enabling women certified under the Midwives Act, 1951, to be certified under this Act on compliance with such conditions, if any, as may be specified in the rules and on payment of such fee, if any, as may be determined by the Board with the approval of the Secretary of State ; and
- (b) after consultation with the Joint Nursing and Midwives Council for Northern Ireland, to make rules enabling women certified or deemed to have been certified under the Midwives (Ireland) Act, 1918, to be certified under this Act on compliance with such conditions, if any, as may be specified in the rules and on payment of such fee, if any, as may be determined as aforesaid.

(2) The reference in paragraph (b) of the foregoing subsection to the Midwives (Ireland) Act, 1918, shall be construed as a reference to that Act as it applies to Northern Ireland under the provisions of the Government of Ireland Act, 1920,

and subject to any adaptation or amendment made by Order in Council under those provisions or by any Act of the Parliament of Northern Ireland.

7.—(1) A woman who proves to the satisfaction of the Board that, elsewhere than in the United Kingdom, she successfully completed her training as a midwife in accordance with a scheme of training recognised by the Board as being satisfactory for the purposes of this subsection and that she is of good character shall, on making application in that behalf and on payment of such fee, if any, as may be determined by the Board with the approval of the Secretary of State, be entitled to be certified under this Act.

Certification of midwives trained outside the United Kingdom.

(2) If in the case of a woman who proves to the satisfaction of the Board that she successfully completed her training as a midwife elsewhere than in the United Kingdom but is unable to prove that her training was in accordance with a scheme of training recognised by the Board as being satisfactory for the purposes of the foregoing subsection, the Board are of opinion that she can properly be certified under this Act after undergoing to their satisfaction such further training in Scotland as may be specified by them and passing such examinations, if any, as may be so specified, they may, if they are satisfied that she is of good character, certify her under this Act if, after undergoing the specified training in Scotland to their satisfaction and passing any specified examinations, she makes application in that behalf and pays such fee, if any, as may be determined by the Board with the approval of the Secretary of State.

8. A certificate issued under this Act to a woman shall not confer upon her any right or title to be registered under the Medical Acts or to assume any name, title or designation implying that she is by law recognised as a medical practitioner or that she is authorised to grant any medical certificate or any certificate of death or to undertake the charge of cases of abnormality or disease in connection with parturition:

Certification not to imply possession of medical qualifications.

Provided that nothing herein contained shall prevent a certified midwife from granting such certificates as may be required in connection with maternity benefit under the National Insurance Act, 1946.

9. Any woman who, not being a certified midwife, takes or uses the name or title of midwife, either alone or in combination with any other word or words, or any name, title, addition, description, uniform or badge implying that she is a certified midwife or is a person specially qualified to practise midwifery or is recognised by law as a midwife, shall be liable on summary conviction to a fine not exceeding five pounds.

Penalisation of acts falsely implying certification.

Provisions relating to the Practice of Midwifery, etc.

Prohibition of persons other than certified midwives attending women in childbirth except under medical supervision.

10. If any person, being either a male person or a woman who is not a certified midwife, attends on a woman in childbirth otherwise than under the direction and personal supervision of a duly qualified medical practitioner, that person shall, unless he or she satisfies the court that the attention was given in a case of sudden or urgent necessity, or in a case where reasonable efforts were made to obtain the services of a duly qualified medical practitioner or of a person certified under this Act, be liable on summary conviction to a fine not exceeding ten pounds:

Provided that the provisions of this subsection shall not apply in the case of a person who, while undergoing training with a view to becoming a duly qualified medical practitioner or a certified midwife, attends on a woman in childbirth as part of a course of practical instruction in midwifery recognised by the General Medical Council or by the Board, if the attendance by that person is in accordance with the provisions regulating the course of study in midwifery as recognised by the said Council or the rules relating to the training of midwives made by the Board under subsection (1) of section five of this Act.

Prohibition of unqualified persons acting as maternity nurses for gain.

11.—(1) If any person who is neither a certified midwife nor a person registered in the general part of the register of nurses required to be kept under the Nurses (Scotland) Act, 1951 receives any remuneration for attending in any area as a nurse on a woman in childbirth or at any time during the fourteen days immediately after childbirth, that person shall be liable on summary conviction to a fine not exceeding ten pounds:

Provided that the provisions of this subsection shall not apply in the case of—

- (a) any person who, while undergoing training with a view to becoming a duly qualified medical practitioner or a certified midwife, attends on a woman as aforesaid as part of a course of practical instruction in midwifery recognised by the General Medical Council or by the Board; or
- (b) any person who attends on a woman as aforesaid—
 - (i) in any maternity home which is registered under the Nursing Homes Registration (Scotland) Act, 1938, or exempt from the operation of that Act under section six thereof; or
 - (ii) in any hospital maintained or controlled by a Government department or local supervising authority; or
- (c) a woman who, before the first day of January, nineteen hundred and thirty-eight, was certified by the authorities of a hospital or other institution to which the

Secretary of State has by order applied this proviso, to have been trained in obstetric nursing, and who has given notice in writing to the local supervising authority of the area that she was so certified.

(2) The provisions of this section shall be in addition to, and not in derogation of, the provisions of the last foregoing section.

(3) The power conferred on the Secretary of State by this section to make orders shall be exercisable by statutory instrument.

12. If any woman whose name has been removed from the roll under section four of the Maternity Services (Scotland) Act, 1937, receives any remuneration for attending as a nurse on a woman in childbirth or at any time during the fourteen days immediately after childbirth, she shall be liable on summary conviction to a fine not exceeding ten pounds.

Prohibition of certain retired midwives from acting as maternity nurses for gain.

13. No certified midwife shall employ as her substitute a woman who is not a certified midwife.

Prohibition of employment by midwives of unqualified substitutes.

14.—(1) In the event of an emergency a certified midwife shall call in to her assistance a duly qualified medical practitioner and shall forthwith report the matter to the local supervising authority, stating the nature of the emergency and the name of the medical practitioner.

Duty of midwives to summon medical assistance in emergencies.

(2) A medical practitioner called in by a certified midwife under the foregoing subsection shall—

(a) on submitting to the local supervising authority, within three months from the date of the last visit to which the scale after-mentioned applies, a claim in that behalf stating the nature of the emergency, and

(b) subject to such other conditions, if any, as may be prescribed,

be entitled to be paid by the authority, in accordance with the prescribed scale, a sufficient fee with due allowance for mileage.

(3) The prescribed scale for the purposes of the last foregoing subsection shall, as respects any case, cover such visits by a medical practitioner in addition to his original visit, as may be specified therein.

(4) In this section the expression "emergency" means an emergency as defined by rules having effect by virtue of paragraph (c) of subsection (1) of section five of this Act, and the expression "prescribed" means prescribed by regulations made by the Secretary of State by statutory instrument.

Notices to be given by Midwives

Notification by midwives of intention to practise.

15.—(1) Every certified midwife shall, before holding herself out as a practising midwife or commencing to practise as a midwife in any area, give notice in writing to the local supervising authority of her intention so to do and of the address at which she resides, and shall give a like notice in the month of January in every year thereafter during which she continues to practise in such area.

(2) Such notice shall be given to the local supervising authority of the area within which the midwife usually resides or carries on her practice, and the like notice shall be given to every other local supervising authority within whose area she at any time practises or acts as a midwife, within forty-eight hours at the latest after she commences so to practise or act.

(3) Every notice under this section shall contain such particulars as may be required by rules made by the Board to secure the identification of the person giving it.

(4) If any woman omits to give any notice required by this section to be given or knowingly or wilfully makes or causes or procures any other person to make any false statement in any such notice, she shall be liable on summary conviction to a fine not exceeding five pounds.

Notification by practising midwives of change of address.

16. Where a certified midwife has given a notice in compliance with the last foregoing section and subsequently changes her address, she shall, within three days after such change, give notice of the change to every local supervising authority concerned, and if she omits to do so, shall be liable on summary conviction to a fine not exceeding five pounds.

Local Supervision of Midwives

Local supervising authorities of purposes of this Act.

17. Every local health authority within the meaning of the National Health Service (Scotland) Act, 1947, shall be the local supervising authority over certified midwives within the area of the authority, and any reference in this Act to a local supervising authority shall be construed accordingly.

Local supervision of midwives.

18.—(1) It shall be the duty of every local supervising authority by themselves or by their medical officer acting under their instruction—

- (a) in accordance with such provision in that behalf as is contained in rules having effect by virtue of paragraph (b) of subsection (1) of section five of this Act, to exercise general supervision over all certified midwives practising within their area ;

- (b) to investigate any charge of malpractice, negligence or misconduct on the part of a certified midwife practising within their area and, if a *prima facie* case is established, to report it to the Board ;
- (c) in accordance with such provision in that behalf as is contained in rules having effect by virtue of paragraph (d) of subsection (1) of section five of this Act, to suspend any certified midwife from practice if it appears necessary so to do in order to prevent the spread of infection ;
- (d) to report at once to the Board the name of any certified midwife practising within their area who is convicted of an offence under this Act ;
- (e) to supply the secretary of the Board, during the month of February in each year, with the names and addresses of all certified midwives who, during the period of twelve months ending with the thirty-first day of January in that year, have notified the authority of their intention to practise within their area ;
- (f) to report at once to the Board the death of any certified midwife or any change in the name or address of any certified midwife in their area ; and
- (g) to provide or arrange for the provision of such courses of instruction for certified midwives practising in their area as may be necessary to enable those midwives to comply with any rules having effect by virtue of paragraph (e) of subsection (1) of section five of this Act :

(2) Without prejudice to the generality of paragraph (d) of subsection (1) of section five of this Act, a local supervising authority may be authorised by rules made by the Board to suspend from practice until the case has been decided any certified midwife against whom a prosecution has been instituted for a contravention of any of the provisions of this Act.

(3) The Secretary of State may by statutory instrument make regulations prescribing the qualifications of persons appointed by a local supervising authority to exercise supervision over certified midwives practising within their area, and such qualifications shall include practical experience in midwifery subsequent to training ; and, except where owing to the special circumstances of any particular area the Secretary of State otherwise agrees, no person shall be so appointed whose qualifications are not in accordance with the regulations.

19. A local supervising authority and any joint committee of Appointment two or more local supervising authorities may appoint com- of committees.
mittees for the purpose of exercising all or any of their powers
and duties under this Act, and any committee so appointed may
consist partly of persons who are not members of the appointing
authority or committee.

Powers of
entry.

20.—(1) Any person appointed by a local supervising authority to exercise supervision over certified midwives within their area may at all reasonable times enter any premises within such area which he has reason to believe to be a lying-in home conducted for profit, and in which he has reason to believe that a certified midwife is employed or practises, or that a woman who is not a certified midwife practises in contravention of this Act.

(2) Any person who wilfully obstructs any such person as aforesaid in the performance of his duties shall be liable on summary conviction to a fine not exceeding five pounds.

Medical
officer's report.

21. The medical officer of every local supervising authority shall report annually to that authority on the administration of this Act within the area of the authority and shall transmit a copy of the report to the Board and to the Secretary of State.

Financial and other Provisions for Benefit of Midwives

Compensation
to midwives
for suspension
from practice.

22.—(1) Where a certified midwife has been suspended from practice in order to prevent the spread of infection, she shall, if she was not herself in default, be entitled to recover from the local supervising authority such amount by way of compensation for loss of practice as is reasonable in the circumstances of the case.

(2) Where, in pursuance of rules made under paragraph (d) of subsection (1) of section five of this Act or subsection (2) of section eighteen of this Act, a certified midwife has been suspended from practice pending the decision of her case by a court or the Board and the case is decided in her favour, the Board or the local supervising authority by whom she was suspended may, if they think fit, pay her such reasonable compensation for loss of practice as under the circumstances may seem just.

Payment of
expenses of
midwife's
defence.

23. The Board may, if they think fit, pay all or part of the expenses incurred by a certified midwife required to appear before them in her own defence.

Payments to
enable
midwives to
attend courses
of instruction.

24. A local supervising authority may make payments to certified midwives not employed by them to enable such midwives to attend any course of instruction provided or arranged for by them under paragraph (g) of subsection (1) of section eighteen of this Act.

Supply of
forms, &c., to
midwives.

25.—(1) All forms required to be filled up and returned to the Board by certified midwives shall be supplied to them by the Board without charge; and all other forms required to be filled up by certified midwives, other than forms required to be

filled up and returned to the Board, and all books required to be used by certified midwives shall be supplied to them by the local supervising authority without charge.

(2) Where any such form as aforesaid is required to be returned by post to the Board or the local supervising authority, the form shall be supplied duly stamped or a duly stamped envelope shall be supplied with the form.

26. Any agreement made (whether before or after the passing of this Act) between a local health authority or other body or association and a certified midwife employed by them for the purpose of attending on women in their homes as a midwife or maternity nurse shall be void in so far as it precludes the midwife from wearing a uniform prescribed by virtue of paragraph (g) of subsection (1) of section five of this Act.

Avoidance of certain agreements so far as precluding wearing of authorised uniform.

27. A certified midwife shall, if in practice as a midwife, be exempt from serving on any jury.

Exemption of midwives from jury service.

Accounts, Reports and Expenses of the Central Midwives Board for Scotland

28.—(1) As soon as practicable after the thirty-first of December in each year the Board shall publish a financial statement made up to that date showing the receipts and expenditure and liabilities of the Board during the year and certified as correct by the appointed accountant, and shall submit a copy of the statement to the Secretary of State.

Accounts of the Board.

(2) The Board may apportion between local supervising authorities in proportion to the populations of their respective areas as ascertained at the last preceding census for the time being any balance against the Board which is disclosed by any such statement as aforesaid and is approved by the Secretary of State.

(3) The Board may issue requisitions to the local supervising authorities for the amounts apportioned to them respectively under the last foregoing subsection, and every local supervising authority shall, within six months after the receipt of such requisition or such longer period as may be agreed with the Board, pay to the Board the amount required under the requisition.

(4) The approval by the Secretary of State of any such balance as is mentioned in subsection (2) of this section shall, for the purposes of apportionment under that subsection, be binding and conclusive as to the amount of the balance.

(5) In this section the expression "appointed accountant" in relation to the financial statement for any year means such accountant, being an accountant practising in Scotland, as may be appointed in that behalf by the Secretary of State.

Annual report
of the Board.

29. The Board shall, within three months after the termination of each year, present to the Secretary of State a report of their proceedings during the year containing such particulars as the Secretary of State may direct.

Expenses of
the Board.

30. All fees received by the Board under this Act or any enactment repealed by this Act shall be applied by them to the payment of expenses connected with the holding of examinations and the issue of certificates under this Act or any such enactment as aforesaid and towards defraying the general expenses of the Board.

Miscellaneous and General

Powers of local
supervising
authorities to
contribute
towards
training of
midwives.

31. A local supervising authority may contribute towards the training of midwives within or without their area in such manner and to such extent as may be approved by the Secretary of State.

Power of local
supervising
authorities to
provide
residential
accom-
modation for
pupil midwives.

32.—(1) A local supervising authority may provide, or may improve or furnish, residential accommodation for women undergoing in their area courses of training with a view to becoming certified midwives.

(2) The Secretary of State may authorise a local supervising authority to purchase compulsorily land for the purposes of the provision of such accommodation as aforesaid, and the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to the compulsory purchase of land under this subsection as if this subsection had been in force immediately before the commencement of that Act.

(3) Expenditure incurred under this section by a local supervising authority shall be deemed for the purposes of section fifty-three of the National Health Service (Scotland) Act, 1947, (which provides for the payment of grants to local health authorities in respect of expenditure incurred by them in carrying out their functions as local health authorities) to be expenditure incurred by the authority in carrying out their functions under that Act as a local health authority.

Annual
publication of
list of
practising
midwives.

33. The Board shall publish in each year a list of the names of certified midwives supplied in that year under subsection (1) of section eighteen of this Act by local supervising authorities to the secretary of the Board.

34.—(1) Rules made under or by virtue of this Act by the Approval of Board shall not come into operation until they have been com- rules.
municated to the Executive Committee of the General Medical Council and are approved by the Secretary of State; and before approving any rules so made the Secretary of State shall take into consideration any representations with respect thereto made by the said Executive Committee.

(2) The power conferred on the Secretary of State by the foregoing subsection shall be exercisable by statutory instrument.

35.—(1) In this Act the expression “certified midwife” means a woman who is for the time being certified under this Act. Meaning of
“certified
midwife”.

(2) A woman who immediately before the commencement of this Act is certified under the Midwives (Scotland) Act, 1915, shall, so long as her certificate under that Act continues in force, be deemed for all purposes to be certified under this Act.

36.—(1) The enactments mentioned in the first and second columns of Part I of the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule; and the Orders in Council mentioned in the first and second columns of Part II of that Schedule are hereby revoked to the extent specified in the third column of that Part of the Schedule. Repeal and
consequential
savings.

(2) Nothing in this Act shall affect any order, regulation, rule, application, specification, claim or apportionment made, prohibition imposed, authority, approval, direction or notice given, requisition issued or any other thing done under an enactment repealed by this Act, but any such order, regulation, rule, application, specification, claim, apportionment, prohibition, authority, approval, direction, notice, requisition or thing shall, if and in so far as it is in force at the commencement of this Act, continue in force, and so far as it could have been made, imposed, given or done under the corresponding provision of this Act it shall have effect as if it had been made, imposed, given, issued or done under that corresponding provision.

(3) The repeal by this Act of the Midwives (Scotland) Act, 1915, shall not invalidate any certificate issued under that Act to a woman, which is in force at the commencement of this Act, and any such certificate shall, for the purposes of this Act, be deemed to have been duly issued thereunder.

(4) Nothing in this Act shall be construed as revoking Regulation thirty-three of the Defence (General) Regulations, 1939, (which provides for granting to certain women temporary exemption from the enactments relating to midwives).

(5) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(6) Any person appointed to an office under or by virtue of an enactment repealed by this Act or the Central Midwives Board for Scotland (Constitution) Order, 1936, shall be deemed to have been appointed to that office under or by virtue of the corresponding provision of this Act.

(7) The roll of midwives kept under the Midwives (Scotland) Act, 1915, shall be deemed part of the roll of certified midwives to be kept under this Act.

(8) The mention of particular matters in this section shall not be taken to affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

Saving for
medical
practitioners.

37. Nothing in this Act respecting certified midwives shall apply to duly qualified medical practitioners.

Short title,
extent and
commence-
ment.

38.—(1) This Act may be cited as the Midwives (Scotland) Act, 1951.

(2) This Act shall apply to Scotland only.

(3) This Act shall come into force on the first day of September, nineteen hundred and fifty-one.

SCHEDULES

FIRST SCHEDULE

CONSTITUTION AND PROCEDURE OF THE CENTRAL MIDWIVES BOARD FOR SCOTLAND

Section 1.

1. The Board shall consist of sixteen persons of whom—

- (a) five (of whom four shall be certified midwives practising in Scotland) shall be appointed by the Secretary of State;
- (b) seven shall be duly qualified medical practitioners appointed, as to one each, by the University Courts of the Universities of Edinburgh, St. Andrews, Glasgow and Aberdeen; as to one by the Royal College of Physicians of Edinburgh, the Royal College of Surgeons of Edinburgh, and the Royal Faculty of Physicians and Surgeons of Glasgow jointly; and as to two by the Scottish Committee of the British Medical Association;
- (c) four shall be appointed, as to one each, by the Association of County Councils in Scotland, the Convention of Royal Burghs of Scotland, the Scottish Branch of the Queen's Institute of District Nursing, and the Society of Medical Officers of Health of Scotland.

2. The members of the Board shall hold office for a term of five years; and a member shall, on the expiration of his term of office, be eligible for reappointment for a like term.

1ST SCH.
—cont.

3.—(1) A vacancy occurring, whether by resignation or death or any cause other than retirement in ordinary course, in the place of a member of the Board appointed by the Secretary of State shall be filled by a person appointed by him; and a vacancy so occurring in the place of any other member of the Board shall be filled by a person appointed by the body or bodies who appointed that member.

(2) Where the place of a member of the Board is vacant as aforesaid and the member was appointed thereto as a certified midwife or a duly qualified medical practitioner, the person appointed to fill the vacancy under the foregoing sub-paragraph shall be a certified midwife or a duly qualified medical practitioner as the case may be.

4. The Board shall appoint one of the members thereof to act as chairman of the Board and may appoint another of the members thereof to act as deputy chairman in the absence of the chairman.

5. The Board shall be a body corporate with perpetual succession, a common seal and power to hold land.

6. The powers of the Board may be exercised notwithstanding a vacancy in the membership of the Board.

7. The Board may make rules regulating their quorum and proceedings.

8.—(1) The Board shall, with the approval of the Secretary of State, appoint a secretary and such other officers as may be required.

(2) The officers of the Board shall be removable at the pleasure of the Board.

9. The Board may constitute such committees consisting of members of the Board as the Board consider it desirable for the exercise or performance of any of their powers or duties to constitute.

10. The Board—

(a) may pay to the members thereof sums (to be calculated in accordance with directions to be given by the Secretary of State) in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject, being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the Board;

(b) shall pay to the officers thereof such salaries as may be approved by the Secretary of State.

11. No person shall be disqualified for being elected to, or sitting or voting as a member of, the House of Commons by reason of being a member of the Board; but in relation to a member of the Board

1ST SCH.
—cont.

who is a member of the House of Commons, sub-paragraph (a) of the last foregoing paragraph shall have effect with the omission of references to loss of earnings.

12. The Board may enter into such agreements, acquire such property and do such things as may, in the opinion of the Board, be necessary or desirable for the exercise or performance of any of their powers or duties and may dispose as they think fit of any property acquired by them.

13. The seal of the Board shall be authenticated by the signature of the chairman of the Board or some other member of the Board authorised by the Board to act in that behalf, and of the secretary of the Board or some other person authorised by the Board so to act.

14. Every document purporting to be a document duly executed or issued either under the seal of the Board authenticated in the manner provided by this Schedule or on behalf of the Board, or purporting to be signed by the secretary of the Board or any person authorised to act in that behalf, shall, until the contrary is proved, be deemed to be a document so executed or issued, or so signed as the case may be.

Section 36.

SECOND SCHEDULE

REPEALS

PART I

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
5 & 6 Geo. 5. c. 91	The Midwives (Scotland) Act, 1915.	The whole Act.
9 & 10 Geo. 5. c. 20.	The Scottish Board of Health Act, 1919.	In section four, in subsection (1), paragraph (c).
17 & 18 Geo. 5. c. 17.	The Midwives (Scotland) Act, 1927.	The whole Act.
1 Edw. 8. & 1 Geo. 6. c. 30.	The Maternity Services (Scotland) Act, 1937.	The whole Act.
10 & 11 Geo. 6. c. 27.	The National Health Service (Scotland) Act, 1947.	In section twenty-three, subsection (1).
12, 13 & 14 Geo. 6. c. 93.	The National Health Service (Amendment) Act, 1949.	In section twenty-nine, subsections (2) and (4).
14 Geo. 6. c. 13	The Midwives (Amendment) Act, 1950.	The whole Act.

PART II
ORDERS IN COUNCIL REVOKED2ND SCH.
—cont.

Year and Number	Short Title	Extent of Revocation
S.R. & O. 1936, No. 1150/S. 36	The Central Midwives Board for Scotland (Constitution) Order, 1936.	The whole Order.
S.I. 1948, No. 2	The Statutory Instruments (Confirmatory Powers) Order, 1947.	In the Schedule, the entries relating to the Midwives (Scotland) Act, 1915.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Midwives (Scotland) Act, 1915	5 & 6 Geo. 5. c. 91.
Midwives (Ireland) Act, 1918	7 & 8 Geo. 5. c. 59.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Maternity Services (Scotland) Act, 1937 ...	1 Edw. 8. & 1 Geo. 6. c. 30.
Nursing Homes Registration (Scotland) Act, 1938	1 & 2 Geo. 6. c. 73.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Midwives Act, 1951	14 & 15 Geo. 6. c. 53.
Nurses (Scotland) Act, 1951	14 & 15 Geo. 6. c. 55.

CHAPTER 55

Nurses (Scotland) Act, 1951

ARRANGEMENT OF SECTIONS

PART I

GENERAL PROVISIONS AS TO THE GENERAL NURSING COUNCIL
FOR SCOTLAND, ETC.*The General Nursing Council for Scotland*

Section

1. The General Nursing Council for Scotland.

The Register of Nurses

2. The register of nurses.